

Safety Lab Aero - End User License and Subscription Agreement

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This End User License and Subscription Agreement (the “Agreement”) is a binding legal contract between you, whether an individual or the entity you represent (the “Licensee,” “you,” or “your”), and Safety Lab Aero, Inc., a Delaware corporation (“Licensor,” “we,” “us,” or “our”). The Agreement governs your access to and use of the Safety Lab Aero software application, the Safety Lab Aero web service hosted at safetylabaero.com, the Safety Lab Aero desktop application, the database, application and inference-proxy components distributed for installation on infrastructure you operate, the application source code distributed in object or any other form, and all related documentation, templates, libraries, sample projects, and updates (collectively, the “Software”).

This Agreement is a single, complete agreement covering both the license to use the Software and the subscription under which it is provided. It replaces and supersedes the separate Safety Lab Aero Software License & Subscription Agreement (SL-LICENSE-0001), which is withdrawn; where a prior acceptance of that document conflicts with this Agreement, this Agreement controls.

By creating an account, signing in, accessing the Software, installing any part of the Software, or using the Software in any manner, you (a) accept and agree to be bound by every term of this Agreement and (b) represent that you have the legal capacity to enter into this Agreement and, if you are entering into this Agreement on behalf of an entity, that you have the authority to bind that entity. If you do not agree to every term of this Agreement, you must not access or use the Software.

1. Definitions

For the purposes of this Agreement:

“Account” means the credentialed access to the Software registered to a specific email address.

“Authorized User” means an individual to whom you have provided an Account and who is permitted by you to use the Software on your behalf.

“Customer Data” means any data, files, projects, analyses, requirements, templates, attachments, or other content that the Licensee submits to, uploads to, or generates within the Software.

“Customer-Hosted Deployment” means a Deployment Model in which Licensee installs and operates the Software, its database, and its inference proxy on infrastructure that Licensee controls, as described in Section 2A and in the Deployment and Setup Guide (SL-DG-0001).

“Deployment Model” means the manner in which the Software is operated for Licensee, being one of the Hosted Deployment, the Customer-Hosted Deployment, or the Local-Only Deployment described in Section 2A.

“Documentation” means the written and online materials describing the operation and features of the Software, as updated by us from time to time, including the Deployment and Setup Guide (SL-DG-0001).

“Hosted Deployment” means a Deployment Model in which Licensor operates the Software and its supporting infrastructure on Licensee’s behalf, including the web service at safetylab.aero and any evaluation or trial environment operated by Licensor.

“Local-Only Deployment” means a Deployment Model in which the Software runs on a single Authorized User’s machine with no backend, storing Customer Data only in that machine’s file system or browser storage.

“Output” means any document, report, file, export, or artifact generated by or through the Software, including without limitation Functional Hazard Assessments, Fault Tree Analyses, Common-Cause Analyses, requirements lists, and certification artifacts.

“Seat” means one Authorized User’s right of access under a paid Subscription Tier.

“Subscription Tier” means the level of access you have selected and for which you have paid the applicable fee, as further described in Section 4.

“Term” has the meaning set forth in Section 11.

2. License Grant

Subject to your continuous compliance with this Agreement and your timely payment of all applicable fees, Licensor hereby grants you a limited, non-exclusive, non-transferable, non-sublicensable, revocable license, during the Term, to access and use the Software solely for your own internal business operations, and limited to the number of Seats and the Subscription Tier for which you have paid.

In a Customer-Hosted Deployment or a Local-Only Deployment, that license additionally permits you to install, configure, and operate the delivered components of the Software on infrastructure you control, solely for your own internal business operations and solely for the Term. No copy of the Software in source form, no copy of the Software’s proprietary algorithms or trade secrets, and no copy of any patented invention embodied in the Software is granted by this Agreement, and possession of the delivered components confers no right beyond the limited license stated in this Section.

2A. Deployment Models; Where Customer Data Resides

The Software is offered under three Deployment Models. Several provisions of this Agreement apply only to some of them, and this Section governs which. Your Deployment Model is the one described in your applicable order, or, absent an order, the one in which you in fact operate the Software.

- (a) **Hosted Deployment.** Licensor operates the infrastructure. Customer Data is hosted, stored, processed, and transmitted by Licensor in order to provide the Software, AI requests are routed through a proxy that Licensor operates, and Licensor's records of Account and sign-in activity are held on Licensor's systems. The hosting license in Section 5, the aggregated-statistics license in Section 8, and the post-termination retention provision in Section 11 apply.
- (b) **Customer-Hosted Deployment.** Licensee operates the database, the application, and the inference proxy on infrastructure Licensee controls, holds its own provider credentials for AI inference, and is billed directly by its own provider for its own usage. In a Customer-Hosted Deployment, Licensor does not host, store, process, transmit, receive, meter, or have access to Customer Data, Output, Accounts, sign-in events, or AI requests, and no such data passes through or is retained on any system operated by Licensor. Accordingly, the hosting license in Section 5, the aggregated-statistics license in Section 8, and the post-termination retention provision in Section 11 have no application and are of no effect in a Customer-Hosted Deployment.
- (c) **Local-Only Deployment.** The Software runs on a single machine with no backend. Customer Data resides only on that machine. The provisions disappplied in paragraph (b) are likewise of no effect in a Local-Only Deployment.

The obligations that do not depend on Deployment Model, and that apply in every case, are: Licensor's undertaking in Section 5 that Customer Data is not used to train or fine-tune any machine-learning model; Licensor's confidentiality obligations; your ownership of Customer Data and of Output under Sections 5 and 8; and the restrictions, disclaimers, limitations, and indemnities in Sections 3, 7, 9, 9A, 10, and 10A.

Licensor makes no claim of possession, custody, or control over Customer Data in a Customer-Hosted Deployment or a Local-Only Deployment, and cannot produce, export, restore, or delete such data on your behalf. Backup, retention, disaster recovery, and deletion are your responsibility in those Deployment Models.

3. Restrictions

You shall not, and shall not permit any Authorized User or any third party to:

- (a) reverse engineer, decompile, disassemble, or otherwise attempt to derive the source code, internal algorithms, or trade secrets of the Software, except to the limited extent that applicable law expressly permits such activity notwithstanding this prohibition;
- (b) copy, modify, translate, or create derivative works based on the Software, the Documentation, or the Output, except as expressly authorized in this Agreement;
- (c) rent, lease, lend, sell, sublicense, assign, distribute, publish, transfer, or otherwise make the Software available to any third party, including without limitation by means of timesharing, service bureau, software-as-a-service, application service provider, or managed-service offerings;

- (d) circumvent, disable, or interfere with security-related features of the Software, including the paywall, subscription tier enforcement, account verification, license verification, the export-control routing controls, or rate-limiting mechanisms;
- (e) use the Software in any manner intended to compete with the Software, including without limitation by training, fine-tuning, or otherwise creating machine-learning models from the Software's prompts, outputs, generated documents, or user interface;
- (f) use the Software in violation of any applicable law, regulation, or third-party right, including without limitation export-control laws, privacy laws, intellectual-property rights, and the International Traffic in Arms Regulations or the Export Administration Regulations;
- (g) remove, alter, or obscure any proprietary notice, copyright, trademark, or attribution marking displayed on or within the Software, the Documentation, or the Output;
- (h) use the Software to generate certification artifacts for submission to a regulatory authority without first satisfying yourself, through human review by qualified personnel, that the Output is accurate and complete;
- (i) clone, mirror, reproduce, replicate, re-create, re-implement, port, or emulate the Software or any of its functionality, workflows, data schemas, prompt designs, or user interface, whether by manual or automated means and whether or not using Licensor's code;
- (j) scrape, harvest, or systematically capture the Software's user interface, prompts, templates, schemas, or Output, or use the Software, its Output, or its observed behavior to design, train, develop, or benchmark any product, model, or service that competes with or is substantially similar to the Software.

4. Subscription Tiers, Seats, and Fees

The Software is offered under tiered subscription plans. The current tiers and associated fees are published at safetylabaero.com and may be updated from time to time. The tiers available as of the Effective Date are:

EDU, free, restricted to verified academic addresses for individual coursework, thesis work, and research; not for production certification programs.

Pro, \$1,500 per Seat per month, production use by individual safety engineers and small teams.

Pro+, \$2,500 per Seat per month, production use with expanded token allowance and priority support. In a Hosted Deployment, Pro+ includes access to an AI proxy operated by Licensor on your behalf. In a Customer-Hosted Deployment or a Local-Only Deployment there is no Licensor-operated proxy: you operate your own inference proxy and hold your own provider credentials, your provider bills you directly for your own usage, and Licensor neither meters nor caps that usage.

Enterprise, custom, multi-seat deployments with custom contracting terms; contact Licensor for quotation.

Access to the Software is controlled by account credentials registered to an email address. Each paid Seat authorizes one Authorized User. You shall not share, resell, or sublicense account access beyond the authorized Seat count, and you are responsible for maintaining the confidentiality of your credentials and for all activity occurring under your Accounts.

Domain-based complimentary access may be granted in writing to specific organizations identified as strategic partners. Such complimentary access is non-transferable, may be revoked at Licensor's discretion, and confers no perpetual right.

All fees are stated in United States dollars and are exclusive of taxes, duties, and bank-transfer fees. You are responsible for all taxes (other than taxes on Licensor's net income) and bank-transfer fees associated with your payments. Payments are processed by Licensor's payment processor (currently Stripe) and are non-refundable except as expressly stated in Section 11.

A ten-day free trial is offered to new accounts upon first signup. No payment method is required for the trial, no charge is made when it ends, and the trial does not convert automatically into a paid subscription. At the end of the trial period, access to the Software is suspended until you subscribe to a paid tier; in a Hosted Deployment your Customer Data is retained and becomes accessible again on subscription. Licensor may extend a trial in writing at its discretion.

Paid subscriptions renew automatically for successive periods (monthly unless otherwise stated in the applicable plan or order) until canceled; cancellation can be effected through your account settings or by written notice to Licensor and takes effect at the end of the current paid billing period. Fees, Seat counts, and the Subscription Tier set out in an applicable order are incorporated into this Agreement by reference.

5. Customer Data; Confidentiality

You retain all right, title, and interest in and to your Customer Data.

In a Hosted Deployment, you hereby grant Licensor a limited, non-exclusive, non-sublicensable license to host, store, process, and transmit your Customer Data solely as required to provide the Software to you and to perform Licensor's obligations under this Agreement. That license is granted only for the Hosted Deployment and, as provided in Section 2A, has no application in a Customer-Hosted Deployment or a Local-Only Deployment, in which Licensor receives no Customer Data at all.

Licensor will treat your Customer Data as confidential information. Licensor will not access, view, or use your Customer Data for any purpose other than (i) providing the Software to you, (ii) responding to your support requests, (iii) maintaining the security and integrity of the Software, or (iv) complying with applicable law or a valid order of a court of competent jurisdiction, or (v) providing the in-product personalization described in the Personalization; No Model Training paragraph below.

Personalization; No Model Training. Licensor does not use your Customer Data to train or fine-tune any machine-learning model. No model weights are created, updated, or adjusted using your Customer Data, whether by Licensor or, by contractual commitment, by Licensor's language-model providers. This undertaking applies in every Deployment Model and is not qualified, offset, or reserved against by any other provision of this Agreement. The Software's AI features personalize their drafting by retrieval, not by training: your edits and corrections to AI-generated drafts are recorded in a correction store held locally in your own browser, and excerpts from that store may be included in AI requests made on your behalf, solely to match your drafting conventions, and solely in requests serving your own Account. That store never serves any other customer and is never transmitted to Licensor. It is excluded entirely from projects flagged as export-controlled, in both directions: corrections captured under an export-controlled project are never retrieved, and no corrections are retrieved while an export-controlled project is open. The store can be counted, capped (including set to zero), or cleared entirely at any time through the Software's AI settings. AI inference is conducted on a per-request basis through identified language-model providers, the identity of which is disclosed in the Documentation; those providers do not retain or use your prompts or outputs for their own model training. Should Licensor in the future wish to use any Customer Data for model training, it will do so only under a separate, express, opt-in written agreement; nothing in this Agreement grants that right, and declining any such request will not affect your access to any feature of the Software.

You are solely responsible for the accuracy, legality, and content of your Customer Data. You represent and warrant that you have all rights necessary to submit your Customer Data to the Software and that your Customer Data does not infringe any third-party right.

6. AI-Assisted Authoring

The Software includes AI-assisted authoring features that invoke a large language model to draft prose content within certification documents. You acknowledge and agree that:

The Software constrains the AI to operate only over your project data and forbids the AI from fabricating safety-critical claims (failure conditions, severity classifications, Development Assurance Level allocations, quantitative reliability values, regulatory citations) not present in your project data.

AI output is advisory and non-deterministic, and does not compute or alter the deterministic quantitative safety results produced by the Software.

Notwithstanding such constraints, large language models can produce inaccurate, incomplete, or inappropriate output, and the AI's output requires your review and acceptance before it is incorporated into any document.

Human verification by qualified personnel is required before final approval of all AI-generated artifacts: no AI-assisted output, including any analysis, computed or suggested value, severity classification, Development Assurance Level, safety requirement, fault-tree structure, or report, may be finalized, approved, released, or relied upon for any engineering, safety, or certification purpose until a qualified human engineer has

independently reviewed, verified, and accepted it and assumed professional responsibility for it.

The Software's user interface enforces a per-section human disposition gate, requiring you to explicitly Accept, Edit, or Discard each AI-generated section before document finalization. The disposition gate is a feature of the Software, but the responsibility for the accuracy of dispositioned content is yours.

Licensors disclaims any warranty regarding the accuracy of AI-generated content. The AI output is provided as a drafting aid, not as a substitute for engineering judgment.

Where AI requests are routed depends on your Deployment Model. In a Hosted Deployment they are routed through a proxy operated by Licensors to identified language-model providers on a per-request basis. In a Customer-Hosted Deployment or a Local-Only Deployment they are routed through an inference proxy you operate, using provider credentials you hold, and they do not reach Licensors.

7. Intellectual Property

The Software, the Documentation, all related materials, all enhancements and improvements, all proprietary algorithms (including without limitation Binary Decision Diagram fault-tree mathematics with Common-Cause Failure integration, top-down Development Assurance Level allocation, AutoReq requirement generation, V&V Mirror Tree divergence detection, and AI-Constrained Cert Doc Authoring), all underlying methodologies, and all trademarks ("Safety Lab Aero," "AutoReq," "DALgebra," "V&V Mirror," and the Safety Lab Aero logo) are and shall remain the sole property of Licensors and its licensors. The Software incorporates certain patent-pending inventions; nothing in this Agreement grants you any license, express or implied, under any patent of Licensors. Aside from the limited license granted in Section 2, Licensee acquires no right, title, or interest in or to the Software, the Documentation, or any portion thereof, by virtue of this Agreement. Possession of delivered components in a Customer-Hosted Deployment or a Local-Only Deployment does not enlarge that license.

Any unauthorized copying, reproduction, duplication, replication, decompilation, or re-implementation of the Software, its source or object code, its user interface, or its underlying methods and algorithms constitutes both a material breach of this Agreement and an infringement of Licensors' intellectual-property rights, and will be pursued to the fullest extent permitted by law, including injunctive relief, recovery of damages and Licensors' costs and attorneys' fees, and referral for civil and, where applicable, criminal prosecution.

The Software embodies valuable trade secrets and confidential and proprietary information of Licensors, including without limitation its source and object code, architecture, data schemas, prompt designs, deterministic algorithms, and user-interface workflows, all of which derive independent economic value from not being generally known. Licensee shall hold the Software and its non-public elements in strict confidence, shall use no less than a reasonable degree of care to protect them, and shall not disclose

them to any third party. No right or license is granted to Licensee by implication, estoppel, exhaustion, or otherwise, except for the limited license expressly stated in this Agreement.

Licensee acknowledges that any actual or threatened breach of Section 3 or this Section 7 would cause Licenser irreparable harm for which monetary damages would be an inadequate remedy, and Licenser shall therefore be entitled to immediate injunctive and other equitable relief to prevent or restrain such breach, without the necessity of posting a bond or proving actual damages, in addition to all other remedies available at law or in equity, all of which are cumulative. Licenser may recover its actual damages, Licenser's lost profits, disgorgement of Licensee's profits, statutory damages where available, and its costs and reasonable attorneys' fees, and may refer any willful infringement or misappropriation for civil action and, where applicable, criminal prosecution, including under the United States Copyright Act (17 U.S.C. 506), the Defend Trade Secrets Act and Economic Espionage Act (18 U.S.C. 1831 through 1839), and the Computer Fraud and Abuse Act (18 U.S.C. 1030).

Upon reasonable notice, Licenser may audit Licensee's use of the Software to verify compliance with this Agreement, and Licensee shall reasonably cooperate with any investigation of suspected infringement or misappropriation. An audit conducted in a Customer-Hosted Deployment or a Local-Only Deployment is limited to records of license entitlement and Seat usage and confers no right of access to Customer Data or Output.

Licensee shall indemnify, defend, and hold harmless Licenser and its licensors from and against any loss, liability, damage, cost, or expense (including reasonable attorneys' fees) arising out of or relating to Licensee's breach of Section 3 or this Section 7 or any infringement or misappropriation of Licenser's intellectual property. The obligations of Section 3 and this Section 7 survive termination of this Agreement.

8. Output Ownership

You own the Output you generate using the Software, including without limitation Functional Hazard Assessments, fault trees, requirements lists, certification documents, and exported data files, provided that: (a) you have lawfully provided the input data to the Software; (b) the Output incorporates no copyrighted material owned by Licenser or a third party that is not expressly licensed to you under this Agreement; and (c) you are responsible for the human review of the Output prior to its use in any regulatory submission or safety-critical decision.

In a Hosted Deployment, you grant Licenser a non-exclusive, royalty-free license to use anonymized, aggregated statistics about Output (for example, distribution of failure-condition severities, fault-tree size, or certification basis selections) for the purpose of improving the Software, provided that no Customer Data may be identified, extracted, or reconstructed from such statistics. That license may be switched off at your request at any time, without affecting your access to any feature of the Software. As provided in Section 2A, it has no application in a Customer-Hosted Deployment or a Local-Only Deployment, in which Licenser collects no statistics of any kind. This paragraph does not permit any use of Customer Data for model training or fine-tuning, which Section 5 excludes.

9. Warranties and Disclaimers

Licensor warrants that, during the Term, the Software will perform substantially in accordance with the Documentation, when used in accordance with this Agreement.

EXCEPT FOR THE EXPRESS WARRANTY IN THE PRECEDING PARAGRAPH, THE SOFTWARE, THE DOCUMENTATION, AND ALL OUTPUT ARE PROVIDED “AS IS” AND “AS AVAILABLE,” WITHOUT ANY WARRANTY OF ANY KIND. LICENSOR EXPRESSLY DISCLAIMS ALL OTHER WARRANTIES, WHETHER EXPRESS, IMPLIED, STATUTORY, OR OTHERWISE, INCLUDING WITHOUT LIMITATION THE WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, AND NON-INFRINGEMENT. LICENSOR DOES NOT WARRANT THAT THE SOFTWARE WILL OPERATE UNINTERRUPTED OR ERROR-FREE, THAT DEFECTS WILL BE CORRECTED, OR THAT THE SOFTWARE IS FREE OF VIRUSES OR OTHER HARMFUL CODE. LICENSOR DOES NOT WARRANT THAT THE OUTPUT IS SUITABLE FOR SUBMISSION TO ANY REGULATORY AUTHORITY WITHOUT INDEPENDENT REVIEW BY QUALIFIED HUMAN PERSONNEL. THE SOFTWARE IS A TOOL TO ASSIST HUMAN ENGINEERS, NOT A SUBSTITUTE FOR ENGINEERING JUDGMENT.

IN A CUSTOMER-HOSTED DEPLOYMENT OR A LOCAL-ONLY DEPLOYMENT, LICENSOR DOES NOT OPERATE THE INFRASTRUCTURE ON WHICH THE SOFTWARE RUNS AND GIVES NO WARRANTY, AND ACCEPTS NO LIABILITY, IN RESPECT OF THAT INFRASTRUCTURE, ITS AVAILABILITY, ITS CONFIGURATION, ITS BACKUP, OR ITS SECURITY.

9A. Assumption of Risk; Sole Responsibility for Safety and Certification

You acknowledge and agree that the Software is a decision-support and drafting aid only. The Software is not a certifying authority, is not a Designated Engineering Representative or delegated organization, and does not constitute engineering, airworthiness, legal, or other professional advice, a certification, or an approval. No Output is a determination of safety, airworthiness, or regulatory compliance.

You are solely responsible for (a) all engineering, safety, airworthiness, design, certification, manufacturing, operational, and maintenance decisions; (b) the independent review, verification, and validation of all Output by qualified human personnel who assume professional responsibility for it; and (c) compliance with all applicable laws, regulations, and airworthiness requirements.

To the maximum extent permitted by applicable law, you assume all risk arising from your access to or use of the Software and any Output, including without limitation any use in or affecting the design, analysis, certification, manufacture, operation, or maintenance of any aircraft, system, product, or process. Licensor shall not be responsible or liable for any decision made or action taken in reliance on the Software or any Output, or for any death, personal injury, property damage, loss, delay, or certification or regulatory consequence arising therefrom.

10. Limitation of Liability

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, IN NO EVENT SHALL LICENSOR BE LIABLE TO LICENSEE OR ANY THIRD PARTY FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, EXEMPLARY, OR PUNITIVE DAMAGES, OR FOR ANY LOSS OF PROFITS, REVENUE, GOODWILL, DATA, USE, OR OTHER INTANGIBLE LOSSES, EVEN IF ADVISED OF THE POSSIBILITY OF SUCH DAMAGES. LICENSOR'S TOTAL CUMULATIVE LIABILITY ARISING OUT OF OR RELATED TO THIS AGREEMENT, FROM ALL CAUSES OF ACTION AND ALL THEORIES OF LIABILITY, SHALL BE LIMITED TO THE TOTAL AMOUNT OF FEES PAID BY LICENSEE TO LICENSOR UNDER THIS AGREEMENT DURING THE TWELVE (12) MONTHS IMMEDIATELY PRECEDING THE EVENT GIVING RISE TO THE LIABILITY.

The foregoing limitations apply notwithstanding any failure of essential purpose of any limited remedy and to the maximum extent permitted by applicable law. The limitations and exclusions in this Section 10 apply to Licensor and to its affiliates and their respective officers, directors, employees, agents, and licensors (together, the "Licensor Parties"), and apply to all claims and theories of liability, including any arising from or relating to any Output or any safety-critical use. For any license or access provided at no charge, the Licensor Parties' total aggregate liability shall not exceed one hundred United States dollars (US\$100).

10A. Indemnification by Licensee

You shall indemnify, defend, and hold harmless the Licensor Parties from and against any and all claims, demands, suits, actions, losses, liabilities, damages, judgments, settlements, costs, and expenses (including reasonable attorneys' fees) arising out of or relating to (a) your access to or use of the Software or any Output; (b) any engineering, safety, airworthiness, design, certification, manufacturing, operational, or maintenance decision made or action taken by you or any third party, whether or not in reliance on the Software or Output; (c) any death, personal injury, or property damage arising from or connected to any aircraft, system, product, or process that you or a third party designed, analyzed, certified, manufactured, operated, or maintained; (d) your Customer Data or your violation of any law or third-party right; or (e) your breach of this Agreement. This indemnity is in addition to, and not in limitation of, the indemnity in Section 7, and survives termination.

11. Term and Termination

This Agreement commences on the date you first access the Software and continues until terminated as set forth herein (the "Term").

Either party may terminate this Agreement for convenience by providing thirty (30) days' written notice to the other party. Licensee may also terminate at any time by canceling its subscription through the account settings; cancellation takes effect at the end of the current paid billing period and no pro-rated refund of pre-paid fees is provided except as required by applicable law.

Licensor may suspend or terminate this Agreement immediately, without notice, if Licensee materially breaches any term of this Agreement, including without limitation any restriction set forth in Section 3, any payment obligation, or any representation or warranty.

Upon termination: (i) Licensee's right to access and to operate the Software ceases immediately, and in a Customer-Hosted Deployment or a Local-Only Deployment Licensee shall cease operating and shall remove the delivered components from its infrastructure; (ii) in a Hosted Deployment, Licensor will retain Customer Data for a period of ninety (90) days following termination to permit Licensee to export the data, after which Licensor may delete the Customer Data, and Licensor will delete it earlier on Licensee's written request; (iii) in a Customer-Hosted Deployment or a Local-Only Deployment, Licensor holds no Customer Data, paragraph (ii) has no application, and retention and deletion remain solely within Licensee's control; (iv) Sections 3, 5, 7, 8, 9, 9A, 10, 10A, 12, and 13 survive termination.

12. Export Compliance

The Software may be subject to United States export-control laws, including without limitation the Export Administration Regulations (EAR), 15 C.F.R. Parts 730 through 774, administered by the United States Department of Commerce. You shall not export, re-export, transfer, or use the Software in violation of any applicable export-control law.

Certain projects within the Software may contain data subject to the International Traffic in Arms Regulations (ITAR), 22 C.F.R. Parts 120 through 130. If you flag a project as ITAR-controlled, the Software blocks any AI invocation associated with that project from routing to a public-cloud inference path. Such an invocation is refused unless a domestic-only (United-States-sovereign) inference endpoint has been configured within your own boundary, and on any error in reaching that endpoint the invocation is refused rather than routed to a public-cloud model.

Licensor does not at present operate a United-States-sovereign hosted inference endpoint. A domestic-only inference path is therefore available only in a Customer-Hosted Deployment or a Local-Only Deployment, in which you configure the endpoint (for example AWS Bedrock in GovCloud, or Azure OpenAI Government) within infrastructure you control, as described in the Deployment and Setup Guide (SL-DG-0001). In a Hosted Deployment, ITAR-flagged invocations are refused. Licensor will not represent that a sovereign hosted option exists unless and until it does.

You are responsible for designating ITAR-controlled projects accurately. Licensor is not a registered exporter of defense articles or defense services and the Software is not authorized for transfer of ITAR-controlled data to non-United-States persons through the Software's user interface.

13. General

Governing Law. This Agreement is governed by the laws of the State of Colorado, without regard to its conflict-of-laws principles. Any dispute arising out of or relating to this

Agreement shall be brought exclusively in the state or federal courts located in El Paso County, Colorado, and the parties consent to the personal jurisdiction of those courts.

Entire Agreement. This Agreement, together with any applicable order, constitutes the entire agreement between the parties with respect to the Software and supersedes all prior or contemporaneous agreements, understandings, and communications, whether written or oral, including without limitation the Safety Lab Aero Software License & Subscription Agreement (SL-LICENSE-0001) in each of its revisions.

Order of Precedence. In the event of a conflict between this Agreement and an applicable order, the order controls as to Seat count, Subscription Tier, fees, term, and Deployment Model, and this Agreement controls as to all other matters.

Amendment. Licensor may amend this Agreement from time to time by posting the amended Agreement at safetylabaero.com or by providing notice through the Software. The amended Agreement takes effect upon Licensee's next access to the Software after the posting or notice. If Licensee does not agree to the amendment, Licensee's sole remedy is to terminate this Agreement.

Severability. If any provision of this Agreement is held to be unenforceable, the remaining provisions remain in full force and effect.

No Waiver. A party's failure to enforce any provision of this Agreement is not a waiver of that or any other provision.

Assignment. Licensee may not assign this Agreement, in whole or in part, without Licensor's prior written consent. Licensor may assign this Agreement freely.

Force Majeure. Neither party is liable for any delay or failure to perform caused by circumstances beyond its reasonable control, including without limitation acts of God, natural disasters, war, terrorism, civil unrest, governmental action, network outages, or labor disputes.

Notices. Notices to Licensor shall be sent to waqas.nafees@safetylabaero.com or to such other address as Licensor may designate. Notices to Licensee shall be sent to the email address associated with Licensee's Account.

Contact

Safety Lab Aero, Inc. Attention: Muhammad Waqas Nafees, Chief Executive Officer
waqas.nafees@safetylabaero.com <https://safetylabaero.com>

By creating an account, signing in, or otherwise using the Software, you acknowledge that you have read, understood, and agreed to be bound by this Agreement.